

[11 & 12 GEO. 5.] *Airdrie and Coatbridge* [Ch. cx.]
Tramways Trust Order Confirmation Act, 1921.



CHAPTER cx.

An Act to confirm a Provisional Order under the A.D. 1921.
Private Legislation Procedure (Scotland) Act 1899 —
relating to the Airdrie and Coatbridge Tramways
Trust. [19th August 1921.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Airdrie and Coat- Short title.
bridge Tramways Trust Order Confirmation Act 1921.

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S C H E D U L E.

AIRDRIE AND COATBRIDGE TRAMWAYS
TRUST.

Provisional Order to constitute and incorporate a Tramway Trust for the burghs of Coatbridge and Airdrie and to transfer to and vest in such trust the undertaking of the Airdrie and Coatbridge Tramways Company and for other purposes.

WHEREAS by the Airdrie and Coatbridge Tramways Act 1900 (hereinafter referred to as "the Act of 1900") the Airdrie and Coatbridge Tramways Company (hereinafter referred to as "the Company") was incorporated and was authorised to construct and work the tramways in the burgh of Airdrie in that Act described :

And whereas by the Coatbridge Tramways Order 1901 (hereinafter referred to as "the Order of 1901") which Order was confirmed by the Tramways Orders Confirmation (No. 4) Act 1901 the Company was authorised to construct and work the tramways in the burgh of Coatbridge in that Order described :

And whereas by the Airdrie and Coatbridge Tramways Order 1903 (hereinafter referred to as "the Order of 1903") the period for the completion of the tramways and works authorised by the Act of 1900 was extended and further powers were conferred on the Company by that Order :

And whereas Tramway No. 4 and part of Tramway No. 5 authorised by the Act of 1900 and Tramway No. 1 and part of Tramway No. 2 authorised by the Order of 1901 have been constructed by the Company and opened for public traffic :

And whereas by the Airdrie and Coatbridge Tramways Order 1920 (hereinafter referred to as "the Order of 1920") the Company was authorised to increase the fares and charges authorised to be demanded and taken by the Act of 1900 and the Order of 1901 for passengers travelling on the tramways :

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And whereas by heads of agreement dated the seventh day of May one thousand nine hundred and twenty and made between the Company of the first part the Coatbridge Town Council of the second part and the Airdrie Town Council of the third part the Coatbridge Town Council and the Airdrie Town Council (hereinafter referred to together as "the town councils") agreed to purchase from the Company and the Company agreed to sell to the town councils the whole of their undertaking (including stores) as at the thirtieth day of September one thousand nine hundred and twenty for the sum of seventy-seven thousand five hundred pounds for the undertaking (other than stores) and a further sum for the stores which has since been agreed at the amount of four thousand seven hundred and fifty pounds making together the sum of eighty-two thousand two hundred and fifty pounds : A.D. 1921.

And whereas it is expedient that the tramway undertaking of the Company when acquired by the town councils should be under the control of a single public authority and for that purpose and for carrying out the provisions of the said agreement that a body of trustees should be incorporated and constituted as by this Order provided representing the town councils and that the undertaking of the Company with all its rights powers duties obligations and privileges should be transferred to and vested in such trustees accordingly and that the further powers contained in this Order should be conferred on the trustees :

And whereas it is expedient that the constituent authorities and the trustees should be authorised to borrow money for the purposes of this Order :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Airdrie and Coatbridge Tramways Trust Order 1921. Short title.

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Commis-
sioners
Clauses Act
incorporated.

2. The provisions of the Commissioners Clauses Act 1847 are except where inconsistent with or expressly varied by this Order incorporated with and form part of this Order with the exception of the following clauses and provisions (that is to say):—

With the exception of clauses 6 7 45 46 52 65 and 92;

And with the exception of the clauses with respect to the election and rotation of the Commissioners where the Commissioners are to be elected by the ratepayers or other like class of electors;

And with the exception of the clauses with respect to the mortgages to be executed by the Commissioners.

Interpre-
tation.

3. In this Order—

“The trust” and “the trustees” mean the Airdrie and Coatbridge Tramways Trustees incorporated by this Order;

“The Airdrie Town Council” means the provost magistrates and councillors of the burgh of Airdrie;

“The Coatbridge Town Council” means the provost magistrates and councillors of the burgh of Coatbridge;

“The town councils” means Airdrie Town Council and Coatbridge Town Council;

“Constituent authority” means Coatbridge Town Council or Airdrie Town Council as the case may be;

“The constituent authorities” means the town councils of Coatbridge and Airdrie;

“The Company” means the Airdrie and Coatbridge Tramways Company;

“The Company’s Acts” means the Airdrie and Coatbridge Tramways Acts 1900 to 1920 so far as the same are still in force and unrepealed;

“The undertaking of the Company” includes (1) the whole of the tramways undertaking of the Company and all the Company’s other property and assets heritable and movable of every description other than (A) books and papers

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investments and cash in bank and in hand and debts due to the Company and (B) machinery materials plant tools and fixtures in the garage of the Company in Main Street Coatbridge and (2) all the Company's powers rights and privileges relating to tramways as the same respectively shall stand at the date of transfer; A.D. 1921.

"The valuation roll" means the valuation roll made up under the Lands Valuation (Scotland) Act 1854 and Acts amending that Act;

"Clerk" means the clerk to the trust;

"Undertaking" means the undertaking of the Company as vested in the trustees by this Order;

"The transfer" means the date of transfer prescribed by the section of this Order of which the marginal note is "Transfer of undertaking."

4. For the purpose of carrying this Order into execution there shall be a trust constituted and appointed as by this Order provided and the trustees and their successors from time to time appointed and acting in pursuance of this Order shall be a body corporate under the name and style of "The Airdrie and Coatbridge Tramways Trustees" with perpetual succession and a common seal and with power to sue and be sued and to purchase take hold lease and dispose of lands and other property for the purposes of this Order and with all the other powers and privileges of a body corporate. Incorporation of trust.

5. The constitution of the trust shall be as follows:—
Seven members to be elected by the Coatbridge Town Council from among themselves; and
Five members to be elected by the Airdrie Town Council from among themselves. Constitution of trust.

6.—(1) The first election of members of the trust by each constituent authority shall take place at a meeting of the constituent authority to be held within one month from the passing of the Act confirming this Order or within such further time as the Secretary for Scotland shall by order allow and the members so appointed shall subject to the provisions of this Order continue in office Election of members.

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A.D. 1921. — till the first statutory meeting of each constituent authority in the month of November one thousand nine hundred and twenty-one.

(2) Each constituent authority shall at the first statutory meeting of their body held in the month of November in each year elect from among themselves the number of members of the trust whom they are by this Order authorised to elect to hold office till the first statutory meeting in the month of November following.

Provision
where failure
to elect
members.

7. If either constituent authority fail to elect first members of the trust as by this Order provided it shall be competent nevertheless for the other members of the trust to carry this Order into execution and if either constituent authority fail to elect members of the trust at any subsequent period of election the then existing members of the trust representing such authority shall continue in office till their successors are appointed.

No person to
be member
of trust
on behalf of
more than
one con-
stituent
authority.

8. No person being a member of the trust by election from either of the constituent authorities shall so long as he continues a member by virtue of such election be qualified to be also a member of the trust by election from the other of the constituent authorities and any such subsequent election shall be void and if the same person shall be elected a member of the trust by both of the constituent authorities at the same election he shall choose under which election he shall serve and the other election shall be deemed void.

Members
to be dis-
qualified on
ceasing to
be members
of constitu-
ent autho-
rities.

9. Subject to the provisions of the section of this Order of which the marginal note is "Election of members" if a member of the trust elected by a constituent authority ceases to be a member of such constituent authority or becomes disqualified as such member he shall also cease to be a member of and to represent the constituent authority upon the trust except in the case where he only goes out of office by rotation as a member of such constituent authority and is thereupon re-elected.

Members
going out of
office eligible
for re-ap-
pointment.

10. Every member of the trust going out of office shall if otherwise duly qualified be eligible for re-election and every person re-elected shall be deemed a new member.

Occasional
vacancies.

11. If any member of the trust dies or resigns or is disqualified or ceases to be a member of the trust from

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any cause the constituent authority whom he represented may if they think fit at any time after the happening of such vacancy elect a member of the trust in his place from among themselves and every member of the trust so appointed shall continue in office only so long as the person in whose place he is elected would have been entitled to continue in office. A.D. 1921.

12. Whenever an election of a member of the trust has been made the clerk to the constituent authority by whom the election was made shall by writing under his hand certify the election to the trust and shall forthwith on the first election transmit the certificate to the town clerk of the burgh of Airdrie and on every subsequent election to the clerk to the trust. Appointment of members to be certified to trust.

13.—(1) The chairman and vice-chairman of the trustees shall be appointed by and from the members of the trust and shall hold office for one year provided that he shall so long continue a member of the trust. Chairman.

(2) On a casual vacancy occurring in the office of chairman or vice-chairman by reason of death resignation disqualification or otherwise another member of the trust shall be appointed in his place to hold office until the time when the person in whose place he is appointed would regularly have gone out of office.

14. The trustees shall hold their first meeting at the Coatbridge Municipal Buildings not later than the third Thursday after the date of the last appointment by either of the constituent authorities at twelve o'clock (unless some other day or time or place shall be appointed for the purpose by the sheriff-substitute of Lanarkshire at Airdrie and then on such day and at such time and place as shall be so appointed) and other meetings of the trustees (including their annual meetings) shall be held on such days at such times and at such places as the trustees may from time to time appoint. First and other meetings of trust.

15. In addition to the meetings to be held by appointment of the trustees the chairman of the trust for the time being or any four or more members of the trust may at any time by writing addressed and sent to the clerk require a special meeting to be convened and the clerk shall convene a meeting accordingly by circular Power to call special meetings.

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A.D. 1921. — delivered to each member of the trust or sent by post to or delivered at his residence two clear days at least before the day of meeting.

Error failure &c. not to invalidate acts done &c. 16. Any act of the trust or of any of the members thereof shall not be invalidated or be illegal by reason of any irregularity in the election of any member of the trust or by reason of any person not qualified or ceasing to be qualified acting as a member of the trust or by reason of any failure or omission on any occasion on the part of either constituent authority to elect any member of the trust or by reason of any other irregularity error failure or omission in or about any election or in or about any matter preliminary or incidental thereto.

As to convening meetings. 17. The first meeting of the trustees shall be convened by the town clerk of the burgh of Airdrie and every subsequent meeting shall be convened by the clerk to the trust.

Quorum. 18. The number of members of the trust present to constitute a meeting of the trust shall be five.

Officers of trust. 19. The trustees may from time to time appoint and may remunerate a clerk a manager an engineer a collector a treasurer and such other officers clerks and servants as they from time to time think requisite and all officers and servants so appointed shall be removable by the trustees at their pleasure The trustees may if it is deemed by them to be expedient appoint one person to fill two or more offices and two or more persons jointly to fill one office No member of the trust or of the Coatbridge Town Council or of the Airdrie Town Council shall be an officer of the trust but the same person may be and continue an officer of the trust and of either constituent authority.

Company to sell their undertaking. 20. The Company shall sell to the town councils and the town councils shall purchase the undertaking of the Company at the price of eighty-two thousand two hundred and fifty pounds which price shall bear interest at seven pounds per centum per annum from the first day of October one thousand nine hundred and twenty until completion of purchase The purchase shall be completed within four months from the passing of the Act confirming this Order or within such longer or shorter period as may be mutually agreed between the town councils and the Company Provided that the obligation of the

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town councils to purchase the undertaking of the Company as in this section provided shall cease if the trustees within four months after the passing of the Act confirming this Order or within such longer or shorter period as may be mutually agreed as aforesaid purchase the same. A.D. 1921.

21. On payment by the trustees to the Company of the price of eighty-two thousand two hundred and fifty pounds and interest and the additional sums payable to the Company under the section of this Order the marginal note of which is "Maintenance of undertaking by Company till transfer" so far as ascertained the said undertaking and all causes of action or proceeding belonging to the Company (except so far as necessary for enforcing the provisions of this Order) shall by virtue of this Order become and shall thenceforth be transferred to and vested in the trustees subject to the provisions of this Order and thenceforth the trustees in their own name and for the benefit of the trust shall subject as aforesaid have and hold the undertaking and may enforce the causes of action or proceeding aforesaid (which transfer and vesting is in this Order referred to as "the transfer").

22. As from the transfer all the powers rights privileges liabilities and authorities of the Company under the Company's Acts shall be by virtue of this Order transferred to and vested in the trust and those Acts shall be read and have effect as if the trust had been therein named instead of the Company subject nevertheless and according to the following exceptions and provisions (namely):—

- (1) The provisions of the Companies Clauses Consolidation (Scotland) Act 1845 and of the Companies Clauses Act 1863 incorporated with the Company's Acts shall not apply to the trust:
- (2) None of the provisions of the Company's Acts or of any Acts incorporated therewith in any manner relating to the share or loan capital of the Company or to the constitution meetings or directors of the Company shall apply to the trust.

23. The Company shall bear and pay all outgoings and liabilities of every kind properly chargeable to

Company
to pay out-
goings and

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Penalties &c. to be recoverable. 24. All penalties incurred by reason of any offence against the provisions of any byelaws or regulations of the Company previously to the transfer may be sued for and all offences committed against such provisions previously to the transfer may be prosecuted in such or the like manner to all intents and purposes as such penalties might have been sued for or such offences prosecuted if the transfer had not taken place.

Contracts of Company to be binding on trust. 25. Except as is by this Order otherwise provided all purchases sales conveyances deeds contracts bonds and agreements entered into or made and in force at the time of the transfer shall be as binding and of as full force and effect in every respect against or in favour of the trust and may be enforced as fully and effectually as if instead of the Company the trust had been a party thereto.

Maintenance of undertaking by Company till transfer. 26.—(1) Until the transfer the undertaking of the Company shall as on and from the first day of October one thousand nine hundred and twenty be maintained and carried on by the Company as heretofore in the ordinary course of business at the expense of the trustees but the Company shall not without the previous consent of the trustees under the hand of their clerk make or enter into any contract agreement or obligation.

(2) The Company may retain any balance of receipts over expenditure until the transfer and may deduct therefrom any interest on the purchase price due and outstanding at that date.

Receipt for sum in gross. 27. The receipt in writing of three directors of the Company for any sum to be paid to the Company by the trust shall effectually discharge the trust from the sums expressed in such receipts to have been received and from being concerned to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof.

Company to be wound up and dissolved. 28. On the completion of the purchase of the undertaking under this Order the Company shall as soon as

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may be found expedient be wound up in the same manner and with the same incidents as if the Company were a company registered under the Companies Consolidation Act 1908 and had on the day of the completion of the said purchase passed a special resolution requiring the Company to be wound up voluntarily and the Company shall thereupon be deemed to have passed an effective resolution for such winding up and for the purposes of such winding up the Company shall from and after the passing of the Act confirming this Order be deemed to be registered in Scotland under the said Act of 1908 and for the purposes of calling and holding meetings and passing resolutions and other matters incident to such winding up resolutions of meetings of the Company convened and held in pursuance of and in accordance with the Company's Acts and the Acts incorporated therewith respectively may and shall take effect as resolutions of a company duly registered and the Company shall within fourteen days of the appointment of the liquidator or liquidators in such winding up pay to the said liquidator or liquidators all moneys then in their hands or under their control and in the meantime shall hold such moneys in trust for the said liquidator or liquidators and all such moneys shall be applied by the said liquidator or liquidators as part of the assets of the Company On the completion of the winding up of the Company in accordance with the provisions of this Order the Company shall by virtue of this Order be dissolved.

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29. The trustees may for the purposes of this Order purchase take and hold by agreement in addition to the lands vested in them under this Order or which they may be authorised to acquire under the Company's Acts any lands and heritages not exceeding in the whole five acres which the trustees may from time to time require for the purposes of their works and undertaking but the trustees shall not create or permit a nuisance on any such lands and shall sell lease or otherwise dispose of on such terms and conditions as they think fit any lands vested in them and which in their judgment are not required for the purposes of their undertaking Provided that nothing in this section or in the Company's Acts shall authorise the trustees to purchase take acquire or hold by agreement any lands or heritages within twenty-five miles of the observatory at Eskdalemuir.

Power to
acquire
additional
lands.

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Application
of moneys
arising from
sale &c. of
lands.

30. The proceeds of the sale of any surplus lands of the trustees and all moneys received by them by way of fine or premium on any lease and other receipts in the nature of capital other than borrowed moneys shall be distinguished as capital in the accounts of the trustees and shall be applied in discharge of moneys borrowed by the trustees but shall not be applied in the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Secretary for Scotland.

Power to
borrow.

31.—(1) The constituent authorities and the trustees may from time to time borrow at interest upon mortgage upon the security of the burgh general assessments leviable by each constituent authority and upon the security of the revenue of the undertaking or any part thereof the sums of money necessary for the purposes hereinafter specified (that is to say):—

- (a) For the purpose of paying the price of the undertaking of the Company the sum of eighty-two thousand two hundred and fifty pounds and interest:
- (b) For the purposes of the undertaking to which capital is properly applicable such sum or sums not exceeding in the whole thirty thousand pounds as the Secretary for Scotland after consultation with the Ministry of Transport may sanction:
- (c) For the purpose of paying the costs and expenses of and incidental to the transfer of the undertaking (including all costs and expenses of any arbitration payable by the trustees) and for the payment of the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto the sum necessary.

Application
of borrowed
money.

(2) Money borrowed under this section shall be applied by the trustees only to the purposes for which it is authorised to be borrowed.

Periods for
repayment.

(3) Any moneys borrowed under this section for the purposes mentioned in (a) shall be repaid within twenty-five years from the transfer and moneys borrowed under this section for the purposes mentioned in (b) shall be

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repaid within such period or periods not exceeding thirty years from the borrowing of the same and by such method as the Secretary for Scotland after consultation with the Ministry of Transport may prescribe and moneys borrowed under this section for the purpose mentioned in (c) shall be repaid within a period of five years from the passing of the Act confirming this Order which respective periods are hereinafter referred to as "the prescribed periods" and such repayment shall be made either by equal annual instalments of principal or of principal and interest combined or by means of a sinking fund appropriated for that purpose and with the accumulations thereof (if any) from time to time applied for that purpose or partly in one way and partly in any of the other ways.

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(4) If having borrowed any money under the provisions of this Order the trustees pay off the same or any part thereof otherwise than by instalments or by means of a sinking fund or out of the proceeds of the sale of lands or other moneys received on capital account not being borrowed moneys the constituent authorities and the trustees may re-borrow the same and so on from time to time Provided that all moneys so re-borrowed shall for the purposes of repayment be deemed part of the original loan and shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such re-borrowing has been made.

Re-borrowing.

(5) If the burgh general assessments of both or either of the constituent authorities are by reason of their limitation insufficient along with the tramway revenue to enable the constituent authorities and the trustees to raise the moneys required for tramway purposes on advantageous terms the Secretary for Scotland may extend the limit of both or either of such assessments to such amount as he shall think fit Provided further that as regards any money borrowed under this Order for any purpose except the purchase of the undertaking of the Company (including the expenses connected with the said purchase) and the cost of the reconstruction of the existing lines of tramway the constituent authorities and the trustees may and shall borrow the same on the credit and security of the free annual revenue of the common good funds of the constituent authorities (after deduction of the usual annual outgoings of each of the constituent

Extension of limit of burgh general assessments and common good as collateral security for moneys borrowed.

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A.D. 1921. authorities) as well as of the tramway revenue and of the said burgh general assessments but the said free annual revenue of the common good funds (after such deduction) shall be liable in relief of the said burgh general assessments.

(6) The Secretary for Scotland shall have and may exercise for the purposes of this section all the powers of section 93 of the Local Government (Scotland) Act 1889.

Sinking
fund.

32.—(1) Any sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding four per centum per annum or such other rate as the Secretary for Scotland may from time to time fix will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority the trustees being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the trustees towards the equal annual payments to the fund.

(4) The trustees may at any time apply the whole or any part of any sinking fund in or towards the discharge

of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the trustees shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum on which the annual payments to the sinking fund are based. A.D. 1921.

(5) (A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the trustees:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the trustees in addition to the payments provided for this Order.

(7) If it appears to the Secretary for Scotland or to the trustees at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the trustees to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the trustees desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations

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A.D. 1921. thereon (in the case of an accumulating sinking fund) will in the opinion of the trustees be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the trustees may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the trustees be sufficient to repay the loan in respect of which it is formed within the prescribed period the trustees may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes of the trust as the trustees may determine.

(12) The period at which the payments into the sinking fund shall commence shall be within one year from the date of borrowing.

Annual
return to
Secretary for
Scotland
with respect
to sinking
fund.

33. The treasurer of the trustees shall within four months after the expiration of each year during which any sum is by this Order required to be paid as an instalment or set apart for a sinking fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so set apart in respect of that year and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return such treasurer so making default shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a

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debt to the Crown is recoverable. If it appear to the Secretary for Scotland by any such return or otherwise that the trustees have failed to set apart the sum required by this Order to be set apart for the sinking fund or to make any increased payment thereto by this Order required or have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Order the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

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34. Every mortgage to be granted shall be by deed duly stamped in which the consideration shall be truly stated and may be in the form contained in the First Schedule to this Order or to the like effect.

Form of mortgage.

35. Every mortgage may be partly in writing and partly printed and shall besides being under the common seal of the trustees be signed by at least two of the trustees and the clerk and shall be executed by each constituent authority in the way and manner prescribed by section 9 of the Town Councils (Scotland) Act 1900. Provided always that none of the said persons shall by his subscription of any such mortgage be or be held to have rendered himself individually or personally liable for the payment of any money so borrowed or any interest thereon or of any sums whatsoever in respect thereof.

Manner in which mortgages to be signed and executed.

36. Any person entitled to any such mortgage may transfer his right and interest therein to any other person and every such transfer shall be by deed or by indorsation on the mortgage duly stamped wherein the consideration shall be truly stated and may be in the form of the Second Schedule to this Order or to the like effect.

Transfer of mortgages.

37. If any such mortgage be transmitted by reason of the bankruptcy of the person entitled thereto there shall be produced to the trustees official evidence of such bankruptcy and of the vesting of the bankrupt estate in the trustees official assignee or other person to whom such estate shall be transferred.

Transmission of mortgages in case of bankruptcy.

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- A.D. 1921. 38. All mortgages and all money advanced and lent under this Order shall be movable estate and transmissible as such and shall not be of the nature of heritable estate.
- Mortgages to be personal estate.
- Discharge of mortgages. 39. Any person entitled to any mortgage granted under the authority of this Order may discharge the same and his right and interest therein in favour of the constituent authorities and the trustees and every such discharge may be written or partly written and partly printed on the mortgage and may be according to the form contained in the Third Schedule to this Order or to the like effect and such discharge when signed by the person entitled to such mortgage and duly stamped shall be valid and effectual to all intents and purposes.
- Ranking of mortgages. 40. All mortgages granted under this Order shall rank together without any priority on account of the date of the mortgage or on any other account.
- Protection of lender from inquiry. 41. No person lending money to the constituent authorities and the trustees shall be bound to inquire as to the observance by the constituent authorities or the trustees of any provision of this Order or be bound to see to the application or be answerable for any loss or non-application of such money or any part thereof.
- For appointment of a judicial factor. 42. The mortgagees may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than eight thousand pounds.
- Borrowing powers for current expenses. 43. In order to raise such money as may be necessary to defray the current annual expenditure of the trustees until their revenues shall be collected the trustees may borrow during the currency of any financial year in addition to the other sum authorised to be borrowed on the security of such revenues any sum or sums not exceeding in the whole one-fourth of the approximate amount of such revenues for the year then current from any bank or banking company or other company or person on such terms and conditions and in such form as may be agreed on between the parties. Provided

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always that such sums so borrowed shall be paid off and extinguished at or before the end of the then current year out of the moneys in the hands of the trustees on revenue account. A.D. 1921.

44. Each constituent authority shall subject to the provisions of this Order annually include in and as part of the burgh general assessment of each constituent authority such sums (if any) as it may be necessary for each constituent authority to provide as hereinafter in this Order provided. Rates to include sinking fund.

45. The bonds to be granted for money borrowed for tramway purposes under this Order shall until repayment thereof form a lien not only on the tramway revenue but also on the burgh general assessments or the said assessments and the free annual revenue of the common good of the burghs (after deduction of the usual annual outgoings of the burghs) as the case may be and shall entitle the creditor under the same to recover the contents thereof from the trustees and the constituent authorities respectively and their officers not only out of the said tramway revenue but also out of the first and readiest of such assessments or the first and readiest of such assessments and free annual revenue of the said common good as the case may be without prejudice to the remedy provided in the section of this Order of which the marginal note is "For appointment of a judicial factor." Bonds to be lien on tramway revenue and assessments and common good.

46. The trustees shall apply the revenue of the undertaking as follows (that is to say):— Application of revenue.

Firstly In payment of the working and establishment expenses and cost of maintenance of their undertaking ;

Secondly In payment of the interest on money borrowed under this Order ;

Thirdly In providing the sums necessary for instalments or any sinking fund under this Order ;

Fourthly In repayment to the town councils respectively of any moneys advanced by them under the provisions of the next succeeding section of this Order with interest at six per centum per annum ;

Fifthly In providing a reserve or renewal fund if they think fit by setting aside such money as they from time to time think reasonable and investing

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and accumulating the same at compound interest in any securities in which they are authorised to invest the sums paid into the sinking fund until the reserve fund so formed amounts to a sum equal to one-eighth of the capital or principal moneys of the trust which sums shall be applicable from time to time for renewals of their undertaking to answer any deficiency at any time happening in the income of the trustees or to meet any extraordinary claim demand or charge at any time arising against the trustees and so that if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-eighth part of the said capital moneys the interest thereon shall be carried to revenue. Provided also that resort may from time to time be had to the reserve fund for any of the purposes aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-eighth as aforesaid ;

Sixthly In improving renewing or extending the undertaking if the trustees think fit so to do ;

Seventhly The trustees may retain in hand at the close of any financial year so much of the surplus as they shall think necessary for the purpose of carrying on the undertaking and paying the current expenses connected therewith during the year next ensuing ;

Lastly If and whenever there shall be remaining in the hands of the trustees any surplus on account of tramway revenue after payment of the charges and making the transfers and appropriations hereinbefore provided for such surplus shall be paid to the credit of the burgh general assessments of the constituent authorities in the proportion to the value of the lands and heritages in their respective burghs such value to be ascertained according to the valuation roll for the time being in force.

Statement
and balance
sheet and
estimates to

47. The trustees shall once in each year after the first year's working cause to be laid before them a statement and balance sheet of the tramway accounts including the

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reserve or renewal fund and the suspense account for the preceding year and an estimate of the revenue to be derived for the ensuing year from the working and use of the tramways and carriages thereon and also an estimate of the sums required to meet for such year the expenses of working management maintenance of lines works machinery and rolling stock repairs renewals materials charges taxes and other outgoings and charges and also the interest on borrowed money and the payment of the sums required to be annually made to the sinking fund and the trustees shall thereupon fix annually the tolls fares and charges to be levied by them for the use of the tramways and of carriages used or propelled thereon for the said year then ensuing not exceeding the tolls fares and charges authorised by the Company's Acts and this Order so that the revenue shall as nearly as possible meet the expenditure as before specified for each year Provided that if in any year the revenue exceeds such expenditure such excess shall be dealt with by the trustees as required by lastly of the immediately preceding section of this Order and that if there should be a deficiency in any year it shall be provided for in the estimates for the following year by drawing from the reserve or renewal fund or varying the tolls fares and charges or reducing working expenses or be carried to a suspense account and reduced gradually over a period of years not exceeding five Provided further that the period from the first day of October one thousand nine hundred and twenty to the fifteenth day of May one thousand nine hundred and twenty-one shall wherever occurring in this Order be with suitable adaptations deemed to be the first year's working of the undertaking.

A.D. 1921,
 —
 be laid before
 trustees.

48.—(1) If in any year in which the trustees are charging their maximum fares and charges there is a deficiency in the revenue of the trustees for the payment of the interest on moneys borrowed under this Order (except under the section of this Order of which the marginal note is "Borrowing powers for current expenses") and the sums necessary for the instalments of sinking fund the trustees shall in every such case forthwith ascertain and determine the amount of such deficiency and shall forthwith intimate the amount thereof to the town clerk of each constituent authority and thereupon the constituent authorities shall apportion the same between themselves in proportion to the value of the

Deficiency in
 revenue of
 trust how to
 be made
 good.

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A.D. 1921. — lands and heritages in their respective burghs such value being ascertained according to the valuation roll in force at the time when such deficiency has been ascertained.

(2) The constituent authorities respectively shall within two months from the receipt of the intimation of such deficiency pay to the trustees the amounts so payable by them respectively.

(3) Such amounts respectively shall be paid by the town councils out of their respective burgh general assessments which assessments are hereby charged with the payment of the same accordingly and the town councils are hereby respectively authorised and required to make and levy such assessments as may be necessary for the purposes aforesaid.

(4) If the town councils or either of them fail to pay any amount so apportioned within the time aforesaid the same shall be a debt due to the trustees from such town council and shall bear interest till payment at the rate of five pounds per centum per annum and the trustees may in addition to all other remedies sue the defaulting town council for the amount unpaid in any court of competent jurisdiction.

(5) Any judicial factor appointed under this Order shall be entitled to receive the amounts so apportioned by the constituent authorities upon themselves and in case the constituent authorities at any time neglect or refuse to make such apportionment or to recover the same or any part thereof the judicial factor shall in every such case be entitled to make such apportionment and to exercise all or any of the powers by this section conferred on the trustees for recovering the amounts so apportioned.

Auditor and
accounts.

49. The provisions of sections 94 to 96 of the Town Councils (Scotland) Act 1900 shall apply to the accounts of the trustees as if those accounts were the accounts of a burgh and in such application the expression "the council" shall mean the trustees the expression "the town clerk" shall mean the clerk to the trustees and the expressions "any person assessed or any elector" "any person assessed or elector" and "any ratepayer or elector" shall mean any ratepayer or local government elector within the burgh of Coatbridge or the burgh of Airdrie.

Let of
garage.

50. The trustees shall let to the Scottish General Transport Company Limited for five years from the

fifteenth day of May one thousand nine hundred and twenty the garage situated in Main Street Coatbridge now occupied by that company with access thereto and on the other terms and conditions upon which they presently hold the same. A.D. 1921.

51. In the event of the dissolution or winding up of the trust (otherwise than by or in consequence of the amalgamation of the burghs of Airdrie and Coatbridge) and of the sale or transfer of the undertaking any surplus arising from the proceeds of such sale or transfer shall be divided between the town councils in proportion to the value of the lands and heritages in their respective burghs as such value shall be ascertained from the valuation rolls of the respective burghs in force at the date of the dissolution or winding up and shall be applied by the town councils to any purpose approved by the Secretary for Scotland. Division of surplus on sale or transfer of undertaking.

52.--(1) Where in the judgment of the trustees it is expedient for the trustees to apply to Parliament for the repeal amendment or extension of any Act or Order for the time being relating to or affecting the trustees or for any alteration or extension of their powers (including the grant of new powers) or otherwise in respect of any matter for the improvement of or in connexion with their undertaking they may pay the costs and expenses attending such application out of their revenues as part of their working expenses. Power to apply to Parliament.

(2) No expenses in relation to any such application shall be paid as aforesaid unless incurred in pursuance of a resolution passed at a meeting of the trustees by an absolute majority of the whole number of the trustees after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in two newspapers published or circulating in the burghs of Airdrie and Coatbridge such notice to be in addition to the ordinary notices required for summoning such meeting No further expense shall be incurred or paid as aforesaid after the deposit of the Bill unless the propriety of the promotion of the Bill shall be confirmed by such absolute majority at a further meeting of the trustees to be held in pursuance of a similar notice not less than fourteen days after the deposit of the Bill in Parliament and shall have received the approval of the Secretary for Scotland.

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(3) The trustees may oppose any Bill in Parliament which in their judgment it is expedient in the interests of their undertaking to oppose and may on obtaining the consent of the Secretary for Scotland pay the costs and expenses attending such opposition out of their revenues as part of their working expenses.

Justices not
disqualified.

53. No person shall be incapable of acting as a justice in the execution of this Order by reason of his being a member of the trust or a mortgagee under this Order or of his being liable to the payment to the trustees of any payment.

Costs of
Order.

54. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall in the first instance be paid by the town councils out of any of their funds or revenues in proportion to the value of the lands and heritages in the respective burghs such value to be ascertained according to the valuation roll for the time being in force but shall be repaid with interest at the rate of six per centum per annum to the town councils by the trustees out of the moneys to be borrowed by them under the powers of this Order.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

FORM OF MORTGAGE.

AIRDRIE AND COATBRIDGE TRAMWAYS TRUST.

Mortgage No. . £

By virtue of the Airdrie and Coatbridge Tramways Trust Order 1921 we the Airdrie and Coatbridge Tramways trustees and the provosts magistrates and councillors of the burghs of Coatbridge and Airdrie in consideration of the principal sum of (specify amount) paid by (name and designation of mortgagee) to the treasurer to the said trustees for the purposes of the said Order do hereby grant and assign to the said (name of mortgagee) and his executors administrators and assignees (or as the case may be) such proportion of the fares and charges to be levied by the said trustees under the authority of the said

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Order and of the burgh general assessments leviable by the A.D. 1921.
respective town councils of the said burghs as the said sum of
(specify amount) doth or shall bear to the whole sum which is
or shall be borrowed upon the credit of the said fares and
charges to hold to the said mortgagee and his foresaids until
the said principal sum and the whole interest due thereon shall
be fully paid and satisfied and it is hereby stipulated that the
said principal sum shall be repayable on the (date) or shall
thereafter in virtue hereof remain as a loan to the said trustees
and town councils until the expiration of such further term of
years and at such rate of interest as shall be specified in a
minute or minutes to be endorsed hereon and signed by the
said mortgagee or his foresaids and by the chairman and clerk
of the said trustees and the provosts and the town clerks of the
said town councils which minute or minutes are hereby declared
and shall be held to be valid and binding though they may be
neither holograph of the said parties nor tested and the said
trustees and town councils shall pay interest on the said
principal sum from the day of to the said date
of repayment first above mentioned (being at the rate of
(specify rate) per centum per annum) declaring that the said
mortgagee and his foresaids shall not be entitled to make and
that the said trustees and town councils shall not be bound to
recognise or register any partial assignation of these presents
or of the sums of money principal or interest herein contained
and that the said trustees or town councils shall not be liable
for any expenses that may be incurred by the said mortgagee
or his foresaids for or in relation to the preparation or execution
of this mortgage or of any discharge renunciation assignation
or minute of postponement or renewal thereof.

In witness whereof (testing clause according to law of
Scotland).

(Signed by two trustees and the clerk and also by the
provost and town clerk of each burgh.)

THE SECOND SCHEDULE.

FORM OF TRANSFER OF MORTGAGE.

I (name and designation of mortgagee) in consideration of
the sum of (specify amount) paid to me by (name and designation
of transferee) do hereby transfer to the said (name of transferee)
and his executors administrators and assignees (or as the case
may be) a certain mortgage number (number of mortgage)
dated the (date of mortgage) made in my favour by the Airdrie
and Coatbridge Tramways trustees and the provosts magistrates
and councillors of the burghs of Coatbridge and Airdrie by

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A.D. 1921. virtue of the Airdrie and Coatbridge Tramways Trust Order
— 1921 in connexion with their undertaking for securing the sum
of (principal sum in mortgage) (or if the transfer be by endorse-
ment the within mortgage) together with the interest thereon
from and after the (date from which transferee is to be entitled
to the interest) and all my right and interest in and to the
principal money thereby secured and interest thereon as afore-
said and in and to the fares and charges thereby assigned.

In witness whereof (testing clause according to the law of
Scotland).

THE THIRD SCHEDULE.

FORM OF DISCHARGE.

Received from the Airdrie and Coatbridge Tramways
trustees and the provosts magistrates and councillors of the
burghs of Coatbridge and Airdrie the sum of
being the principal sum contained in the within mortgage (all
interest due thereon having been previously paid) and the said
mortgage is now delivered up as paid.

Dated this day of one thousand nine
hundred and .

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